

[1 & 2 GEO. 6.] *Empire Exhibition* [Ch. iv.]
(Scotland) Order Confirmation Act, 1937.



CHAPTER iv.

An Act to confirm a Provisional Order under the A.D. 1937.
Private Legislation Procedure (Scotland) Act
1936 relating to the Empire Exhibition
(Scotland). [22nd December 1937.]

WHEREAS the Provisional Order set forth in the
schedule hereunto annexed has after inquiry held
before Commissioners been made by the Secretary of
State under the provisions of the Private Legislation
Procedure (Scotland) Act 1936 and it is requisite that
the said Order should be confirmed by Parliament:

26 Geo. 5. &
1 Edw. 8.
c. 52.

Be it therefore enacted by the King's most Excellent
Majesty by and with the advice and consent of the
Lords Spiritual and Temporal and Commons in this
present Parliament assembled and by the authority of
the same as follows :—

1. The Provisional Order contained in the schedule
hereunto annexed is hereby confirmed.

Confirmation
of Order in
schedule.

2. This Act may be cited as the Empire Exhibition
(Scotland) Order Confirmation Act 1937.

Short title.

A.D. 1937.

SCHEDULE.

EMPIRE EXHIBITION (SCOTLAND).

Provisional Order to make special provision in the matter of the application of the Licensing (Scotland) Acts 1903 to 1934 to the Empire Exhibition to be held in Scotland and for other purposes.

19 & 20
Geo. 5. c. 23.

WHEREAS “Empire Exhibition Scotland—1938” (hereinafter referred to as “the Association”) is an Association limited by guarantee and not having a share capital incorporated under the Companies Act 1929 (permitted by licence from the Board of Trade to dispense with the use of the word “limited” after its name) and having its registered office at 75 Bothwell Street in the city of Glasgow :

And whereas the Association is precluded from paying any dividend or bonus to its members and the financial obligations of the Association have already been guaranteed by the public to the extent of over seven hundred thousand pounds and it is estimated that this figure will ultimately exceed one million pounds :

And whereas the objects for which the Association is established include (inter alia) the following :—

- “(a) The promotion and development of the industrial commercial economic and cultural interests of Scotland and with a view thereto to prepare for organize inaugurate and conduct during the year nineteen hundred and thirty-eight or such later or further period as may be deemed desirable and in such place in Scotland as may be determined a public exhibition of buildings materials products commodities articles machinery appliances inventions and others illustrative of the industry science produce and material and natural resources of the British Empire and of its history art literature music and drama and as complementary thereto of the industry science produce and material and natural resources and the history art literature

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music and drama of other nations and to do all such things as are usually incidental to or may conveniently be done or performed in connection with such an exhibition ; ” A.D. 1937.
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“ (d) For the purposes of the said exhibition to carry on as principals or as lessors the business of restaurant cafe and refreshment room proprietors tobacconists and licensed victuallers purveyors and caterers for public entertainment and public exhibition and amusement generally ; ”

“ (q) To do all such other things as are incidental or which the Association may think are conducive to the attainment of the above objects or any of them : ”

And whereas the corporation of the city of Glasgow being the owners of Bellahouston Park situate within the said city have granted to the Association the right to use the major portion of the said park for the purposes of holding therein the public exhibition hereinbefore referred to :

And whereas Bellahouston Park is situated within that part of the Pollokshields Ward of the city of Glasgow in which by virtue of a poll held under the provisions of the Temperance (Scotland) Act 1913 a no-licence resolution is in force there being a no-change resolution in force in the remaining part of the said ward : 3 & 4 Geo. 5.
c. 33.

And whereas by section 3 of the said Act of 1913 it is provided (inter alia) that for the period during which a no-licence resolution remains in force in any area no certificate shall be granted therein except that the licensing court shall have power in special circumstances to grant certain certificates to sell exciseable liquors to persons taking a meal on the premises :

And whereas in view of the large number of visitors from all parts of the British Empire and from foreign countries who will be attending the proposed exhibition it is expedient in order that arrangements may be made to cater properly for the needs of such visitors and in order to promote the success of the said exhibition that provision should be made for the granting of certificates to sell exciseable liquors by retail to persons other than persons taking a meal upon the premises as hereinafter in this Order contained :

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A.D. 1937. And whereas the purposes aforesaid cannot be
— effected without an Order confirmed by Parliament under
the provisions of the Private Legislation Procedure
(Scotland) Act 1936 :

Now therefore in pursuance of the powers contained in the last mentioned Act the Secretary of State orders as follows :—

Short title and com- mencement.	1.—(1) This Order may be cited as the Empire Exhibition (Scotland) Order 1937.
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(2) This Order shall commence and have effect on and from the date of the passing of the Act confirming this Order which date is hereinafter referred to as "the commencement of this Order."

Interpreta-
tion.

2. In this Order the several words and expressions to which meanings are assigned by the Licensing (Scotland) Acts 1903 to 1934 shall have the same respective meanings unless there be something in the context repugnant to such construction and the following words shall have the meanings in this section respectively assigned to them (that is to say) :—

“ Association ” means “ Empire Exhibition, Scotland—1938 ” incorporated under the Companies Act 1929 limited by guarantee and not having a share capital and by licence of the Board of Trade registered without the addition of the word “ limited ” to its name;

“Exhibition area” and “exhibition” mean respectively so much of Bellahouston Park Glasgow as is contained within the boundaries described in the schedule to this Order and the exhibition to be held therein:

“Period of the exhibition” means the period commencing on the day upon which the exhibition is officially opened to the public and terminating on the day when the exhibition is finally closed to the public but not exceeding in all the period of seven consecutive months.

As to exhibition area.

3. Notwithstanding anything to the contrary in the Licensing (Scotland) Acts 1903 to 1934 or in any resolution under the provisions of the Temperance (Scotland) Act 1913 relating to the Pollokshields Ward of the city of

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A.D. 1937. — for certificates shall be lodged with the said clerk of the licensing court fourteen days at least before the date of the said meeting.

(3) Nothing contained in the foregoing subsections shall prevent an application for a certificate for the sale by retail of exciseable liquor within the exhibition area being made for the first time at the ordinary half-yearly meeting of the licensing court held in the month of April nineteen hundred and thirty-eight.

Costs of
Order.

5. All costs charges and expenses of and incident to the preparing for obtaining and confirming of this Order or otherwise in relation thereto shall be paid by the Association.

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The SCHEDULE referred to in the foregoing Order. A.D. 1937.

BOUNDARIES OF THE EXHIBITION AREA.

All and Whole that part of Bellahouston Park situated partly in the parish of Paisley partly in the parish of Govan and partly in the parish of Eastwood in the city of Glasgow and in the county of Lanark containing 153 acres or thereby and bounded by an imaginary line commencing on the north side of Mossspark Boulevard at the point of junction thereof with Dumbreck Road proceeding thence along the north side of the said Boulevard to the east side of Bellahouston Drive continuing thence in a northerly direction along the east side of Bellahouston Drive for a distance of 511 yards or thereby thence in a north-easterly south-easterly and easterly direction for a distance of 234 yards or thereby thence in a northerly direction for a distance of 70 yards or thereby to the south side of Paisley Road West thence in an easterly direction along the south side of the said road for a distance of 326 yards or thereby thence in a southerly direction for a distance of 35 yards or thereby thence in an easterly direction for a distance of 43 yards or thereby thence in a northerly direction for a distance of 35 yards or thereby to the south side of Paisley Road West thence in an easterly direction along the south side of the said road for a distance of 409 yards or thereby thence in a south-easterly south-westerly and south-easterly direction for a distance of 439 yards or thereby thence in a south-westerly southerly and south-westerly direction for a distance of 264 yards or thereby thence in a southerly direction for a distance of 165 yards or thereby thence in an easterly direction for a distance of 250 yards or thereby thence in a southerly direction for a distance of 25 yards or thereby thence in a westerly direction for a distance of 250 yards or thereby thence in a southerly direction for a distance of 291 yards or thereby thence in an easterly direction for a distance of 215 yards or thereby until it meets the western side of Dumbreck Road thence in a southerly direction along the western side of the said road to the point of commencement.

Printed by EYRE AND SPOTTISWOODE LIMITED

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Acts of Parliament

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